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"RCEP from the middle powers' Perspective"

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ABSTRACT
East Asian countries signed the Regional Comprehensive Economic Partnership Agreement (RCEP) in November 2020. This paper demonstrates the importance of ASEAN centrality in East Asian economic integration and makes a preliminary assessment of the agreement in terms of the four expected roles: liberalization, rule-making, reducing policy risks, and forming a pro-trade middle power coalition. The comparison with the Comprehensive and Progressive Agreement for Trans-Pacific Partnership (CPTPP) reveals the strengths and weaknesses of RCEP. The paper emphasizes the importance of dynamic aspects of mega-FTAs after being in effect and claims that RCEP must be further developed as an evolving agreement.

KEYWORDS
Free trade agreement; tariff; trade diversion; international production networks; East Asia

1. Dynamism of mega-FTAs

East Asia including Northeast and Southeast Asia has led the world in aggressively utilizing international production networks (IPNs) (Ando and Kimura 2005) or the second unbundling (Baldwin 2016) since the latter half of the 1980s and has successfully built up 'Factory Asia.' As a background, countries in the region have boldly applied open trade and foreign direct investment (FDI) development strategies, and active international economic cooperation across countries, both public and private, has been extended. In addition, it has been crucial for the region to mostly maintain long-lasting peace and favorable international trading regime.

The effort of regional economic integration centered by the Association of Southeast Asian Nations (ASEAN) has contributed to realizing business-friendly environment by promoting trade and investment liberalization. Bilateral and mega-FTAs (free trade agreements)[1] have been concluded sequentially with overlaps and have been improved in quality overtime. Particularly for trade in goods and manufacturing FDI with the emphasis on connectivity, East Asian economic integration has provided favorable economic environment for Factory Asia, together with a series of effort for enhancing connectivity. Although huge development gaps still exist across countries and regions, the whole East Asia has benefitted from sustained economic growth and rapid poverty alleviation in the last three decades, and income convergence across countries has been achieved.

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However, in the past 5 years, Factory Asia has faced four serious challenges: (i) the weakening of rule-based trading regime, (ii) the aggravation of the US–China confrontation, (iii) the penetration of digital technology, and (iv) COVID-19 pandemic. Because of these challenges, firms in Factory Asia started encountering policy risks and the fragile trading regime (Kimura 2021). Particularly from the viewpoint of middle powers located between the superpowers, including Japan, South Korea, ASEAN, Australia, and New Zealand, how to maintain stable business environment became a serious issue.

What can the middle powers do to reduce risks and uncertainties in international business operations? One possibility is to utilize mega-FTAs. Mega-FTAs have been expected to achieve two roles: further liberalization and international rulemaking. To respond to the wave of globalization, particularly for IPNs, the level of liberalization and international rulemaking under the current commitments in the World Trade Organization (WTO) is not enough at all. Provided that WTO has not been working well as a negotiating forum, mega-FTAs could be the second-best forum to catch up with globalization.

While these two roles of mega-FTAs are continued to be important, a couple of new roles start being highlighted. One is to reduce policy risks. Because of the weakening of the rule-based trading regime, countries tend to deviate from the WTO policy discipline and the norm of trade rules. Particularly, superpowers may be tempted to utilize ad-hoc trade policy and other policy measures for occasional political purposes without fearing retaliation. Mega-FTAs cannot be a perfect solution for middle powers but is expected to provide at least a communication channel to reduce policy risks. The other is to form a pro-trade middle power coalition. The weakening of rule-based trading regime is a big threat to middle powers. It is worthwhile for middle powers to get together and declare their support on the rule-based trading regime.

In addition, the dynamic nature of mega-FTAs must be emphasized. Signing, ratifying, and being effective are not the final goals of mega-FTAs. After entering into force, mega-FTAs must be effectively utilized, the implementation should be closely monitored, the contents can be upgraded and deepened, and their membership may be expanded. Mega-FTAs are expected to be living and evolving agreements.

This paper reviews the recently signed RCEP from such a viewpoint. The evaluation on RCEP by mass media tends to go to two extremes. One camp says that RCEP is the largest agreement ever concluded in the world and thus is to be celebrated. The other claims that the quality of the agreement is low and thus it will not make much impact. I think that both views are somewhat misleading. The value of RCEP must be assessed based on its expected roles in the dynamic context.

The paper plan is as follows: the next section refers to some statistical data of machinery trade and shows the background of ASEAN's strong commitment for East Asian economic integration. The third section reviews RCEP in terms of liberalization and international rulemaking. The fourth section assesses RCEP from the viewpoint of reducing policy risks and forming a pro-trade middle power coalition. The last section concludes the paper by discussing the way forward.

2. Why ASEAN centrality?

ASEAN has continuously taken the initiative for East Asian economic integration. Economic integration within ASEAN is no doubt the deepest in East Asia; tariffs on

intra-regional trade are already zero without minimal exception, various trade facilitation is advanced, and economic integration is combined with the effort of enhancing connectivity for economic development. Moreover, ASEAN has already concluded ASEAN +1 FTAs with China, Japan, South Korea, Australia, New Zealand, and India and has worked as a hub of FTAs (Table 1). Furthermore, ASEAN initiated the framework of RCEP in Phnom Penh, Cambodia in November 2012 and since then has hosted most of the negotiation meetings with non-ASEAN member countries among which communications are not necessarily smooth. Thanks for ASEAN, RCEP was signed by 15 countries, without India unfortunately, in November 2020 after a long series of negotiations starting in May 2013.

Why has ASEAN supported RCEP all the way? A standard simulation exercise for tariff removals by RCEP on the top of existing ASEAN+1 FTAs suggests that ASEAN might have negative trade diversion effects because increased trade among China, Japan, and South Korea might crowd-out ASEAN's exports.[2] Despite such concern, ASEAN has kept positive attitude toward RCEP. ASEAN believes that RCEP would strengthen the whole Factory Asia which would generate positive trade creation effects for ASEAN, too.

Table 2 shows a world trade matrix of machinery trade in 2019 with a focus on East Asian countries. The rows represent exporting countries while the columns denote importing countries. We here just look at machinery trade, i.e. trade in general machinery, electrical machinery, transport equipment, and precision machinery (Harmonized System 84–92) because the machinery sector is a dominant player in IPNs or the second unbundling. In addition to actual trade values, the table shows 'predicted' trade values, which are calculated by employing a gravity equation exercise; predicted trade values indicate a sort of the world standard trade values after controlling the size of GDP of exporting and importing countries, distance between them, and others. Ratios of actual and predicted trade values are also shown in the table.

As of 2019, China is no doubt the largest player in machinery IPNs. However, if we look at the gaps between the actual and predicted trade values, we can see the level of each country's involvement in East Asian IPNs. China exports machineries to the world more than the predicted value; the ratio of actual/predicted values is 143%. However, exports to Japan and South Korea are lower than predicted values, 64% and 89%, respectively. Japan exports to the world by 139% of the predicted value while its exports to China and South Korea are just 109% and 90% of the predicted value. South Korea's exports to the world are by 205% of the predicted value while exports to China and Japan present the ratio of 185% and 37%, respectively. Perhaps counterintuitively, the mutual links among China,

Table 1. Existing free trade agreements in East Asia.

	China	Japan	South Korea	ASEAN	Australia, New Zealand	India
China	n.a.		yes	yes	yes	
Japan		n.a.		yes	yes	yes
South Korea	yes		n.a.	yes	yes	yes
ASEAN	yes	yes	yes	yes	yes	yes
Australia, New Zealand	yes	yes	yes	yes	yes	
India		yes	yes	yes		n.a.

'yes' means that an FTA has already concluded between countries.
Source: Various sources.

Table 2. Matrix of machinery trade: deviation between actual and predicted trade values (US$million, %).((As attached excel file, please insert horizontal lines between countries. And please be careful not to include comma in inappropriate places; "185,277" instead of "1,85,277" for example.))

Exporter/importer	Trade values	China	Japan	South Korea	ASEAN	Australia, New Zealand	India	Rest of the world	Total
China	Actual (A)		75,889	58,515	1,85,277	7,708	37,831	9,99,568	13,64,788
	Predicted (B)		1,18,680	65,970	99,018	9,470	50,039	6,10,135	9,53,314
	(A)/(B) (%)		*64*	*89*	*187*	*81*	*76*	*164*	*143*
Japan	Actual (A)	81,031		20,245	69,323	2,582	5,817	2,91,796	4,70,795
	Predicted (B)	74,330		22,411	33,052	3,931	7,175	1,97,969	3,38,867
	(A)/(B) (%)	*109*		*90*	*210*	*66*	*81*	*147*	*139*
South Korea	Actual (A)	84,679	9,161		57,551	744	6,551	1,77,042	3,35,729
	Predicted (B)	45,878	24,885		12,437	1,308	2,995	75,928	1,63,431
	(A)/(B) (%)	*185*	*37*		*463*	*57*	*219*	*233*	*205*
ASEAN	Actual (A)	83,854	39,820	24,735	1,36,460	6,022	17,900	3,49,875	6,58,665
	Predicted (B)	47,598	23,820	8,243	58,999	4,892	9,707	1,67,106	3,20,365
	(A)/(B) (%)	*176*	*167*	*300*	*231*	*123*	*184*	*209*	*206*
Australia, New Zealand	Actual (A)	114	57	66	1,257		45	9,667	11,206
	Predicted (B)	2,695	1,767	531	3,280		540	25,078	33,892
	(A)/(B) (%)	*4*	*3*	*12*	*38*		*8*	*39*	*33*
India	Actual (A)	1,971	792	566	9,792	228		52,024	65,373
	Predicted (B)	56,211	12,868	4,837	24,038	2,043		1,61,465	2,61,462
	(A)/(B) (%)	*4*	*6*	*12*	*41*	*11*		*32*	*25*
Rest of the world	Actual (A)	2,99,628	88,317	70,395	2,09,643	21,346	54,970	36,15,363	43,59,775
	Predicted (B)	3,57,717	1,88,917	64,394	2,20,300	43,621	84,598	42,55,444	52,17,685
	(A)/(B) (%)	*84*	*47*	*109*	*95*	*49*	*65*	*85*	*84*
Total	Actual (A)	5,51,277	2,13,978	1,74,456	6,68,046	38,631	1,23,069	54,85,668	72,55,125
	Predicted (B)	5,84,429	3,69,171	1,65,855	4,47,844	65,265	1,54,513	54,68,047	72,55,125
	(A)/(B) (%)	*94*	*58*	*105*	*149*	*59*	*80*	*100*	*100*

Predicted values are obtained from a gravity equation regression (PPML) with bilateral machinery (HS84–92) trade data of 176 countries in 2019.
Controls include GDP, population, WTO dummy, remoteness index, distance between countries, contiguity dummy, common language dummy, common religion dummy, and colonial dummy.
Data sources are BACI and CEPII Gravity Database.
Source: Ando, Yamanouchi, and Kimura (forthcoming).

Japan, and South Korea are not very tight after controlling their general export orientation, economic sizes, and mutual proximity.

ASEAN indicates its special characteristics. ASEAN's exports and imports are way above the predicted values: 206% and 149%, respectively. Furthermore, exports and imports with China, Japan, and South Korea show large ratios against the predicted values. This means that ASEAN's commitment to IPNs in East Asia is strong after controlling its economic size and others. That is why ASEAN thinks much of further strengthening Factory Asia. Of course, we must note that substantial variation across ASEAN Member States in the commitment level may exist.

Figures for India are surprisingly small. India exports machineries to the world by only 25% of the predicted value and imports by 80% of the predicted value. This indicates that India does not yet participate in IPNs but still work in the old import-substitution development strategies. The fundamental reason why India got out of RCEP was the fear of expanding trade deficit against China with an old mindset of industry-by-industry international division of labor or the first unbundling. In IPNs or the second unbundling, countries do export and import at the same time; imports are essential to exports. If its development strategy is modernized, India can capture a lot of potential for utilizing IPNs by connecting itself with East Asia.[3]

3. Liberalization and rulemaking

RCEP consists of 20 chapters (Table 3). From now on, let us review RCEP in terms of four roles, with referring to CPTPP. The first is on liberalization.

Table 3. Chapters in RCEP.

Preamble	
Chapter 1	Initial provisions and general definitions
Chapter 2	Trade in goods
Chapter 3	Rules of origin
Chapter 4	Customs procedures and trade facilitation
Chapter 5	Sanitary and phytosanitary measures
Chapter 6	Standards, technical regulations, and conformity assessment procedures
Chapter 7	Trade remedies
Chapter 8	Trade in services
Chapter 9	Temporary movement of natural persons
Chapter 10	Investment
Chapter 11	Intellectual property
Chapter 12	Electronic commerce
Chapter 13	Competition
Chapter 14	Small and medium enterprises
Chapter 15	Economic and technical cooperation
Chapter 16	Government procurement
Chapter 17	General provisions and exceptions
Chapter 18	Institutional provisions
Chapter 19	Dispute settlement
Chapter 20	Final provisions
Annex I	Schedules of tariff commitments
Annex II	Schedules of specific commitments for services
Annex III	Schedules of reservations and non-conforming measures for services and investment
Annex IV	Schedules of specific commitments on temporary movement of natural persons

In addition, some chapters have appendices.
Source: RCEP.

As for tariff removals (Chapter 2 and Annex I), while CPTPP has set a high standard for East Asia, RCEP only reaches a modest level so far. The tariff removal ratios, which is defined as the proportion of tariff lines that reaches zero tariff by the end of interim period, are 99–100% in CPTPP, with an exception for Japan that remains 95% due to its agricultural protection. In RCEP, the overall tariff removal ratios are 91%, which is roughly comparable with the existing ASEAN+1 FTAs.[4] China–Japan and Japan–South Korea are at first connected by an FTA though the tariff removals are not clean; tariff removal ratios for Japanese imports are 86% for China and 81% for South Korea while those for Japanese exports are 86% and 83% in China and South Korea, respectively. Note that different tariff removal schedules are set across trading partners, which is unconventional. Nevertheless, these tariff cuts are much more advanced compared with the existing WTO-based most-favored-nations (MFN) commitments, and thus we can expect a certain level of trade liberalization effects even though all tariff removals are completed after 20 years. As for other countries, some additional tariff removals are listed for ASEAN latecomers (Cambodia, Laos, Myanmar, and Vietnam: CLMV) on the top of the existing ASEAN+1 FTAs (Hayakawa 2021a).

As for rules of origin (ROOs) for preferential tariffs (Chapter 3), some improvements in the trade-friendly direction from the existing ASEAN+1 FTAs are included, which may encourage private firms to utilize RCEP preferential tariffs instead of those in existing ASEAN+1 FTAs (Hayakawa 2021b). In addition, the detailed commitments on customs procedures and trade facilitation are specified (Chapter 4). Starting from consistency and transparency, details of customs clearance and trade facilitation are itemized with an appendix of stating the period of time to implement the commitments. To extend IPNs to ASEAN latecomers, one of the bottlenecks is high service link costs including the time cost at the border. These commitments are more advanced in RCEP than in CPTPP.

As for services liberalization (Chapter 8, Annex II and III), RCEP tries to introduce a negative list approach, i.e. the approach in which items not to be committed to liberalize are specified, but the work is incomplete. Some countries must change their positive lists (the approach in which items to be committed to liberalize are specified) into negative lists after RCEP is in effect. Investment liberalization also applies a negative list approach while investment protection including the Investor-State Dispute Settlements (ISDS) is to be negotiated later (Chapter 10). The detailed commitments for services and investment in RCEP must be examined from now on though they are likely to fall short compared with CPTPP.

Overall, the current liberalization commitments are likely to generate positive economic effects, but further liberalization must be pursued to catch up with the standard established by CPTPP in the five-year review or some other occasions.[5]

As for rulemaking, RCEP's coverage is comprehensive. Even in comparison with CPTPP, the major missing is just state-owned enterprises (SOEs), labor, and environment. However, the contents of commitments are not necessarily deep. RCEP does not lead the world by its depth in international rulemaking. Rather, it sets a starting point of further negotiations in extended RCEP and other fora for newly developed and developing countries in East Asia.

Three chapters in RCEP particularly draw attention. The first is intellectual property (Chapter 11). RCEP goes beyond the TRIPS (Agreement on Trade-Related Aspects of Intellectual Property Rights) obligation under the WTO by adding some new

commitments related to the enforcement for copyrights, trademarks, and others. These reflect the recent advancement of domestic legislation in China and other newly developed countries. We look forward to step-by-step improvements on intellectual property rights protection in the region.

Second, the electronic commerce chapter (Chapter 12) is path-breaking even though immediate implementation may not come. In addition to no imposition of customs duties on electronic transmissions and the authorization of electronic signature, two out of three CPTPP principles, i.e. free flow of data and no data localization requirements, are incorporated, accompanied with substantial room for deviations due to social policy purposes and national security reasons. These show the current stance of China and ASEAN Member States on e-commerce policy discipline. As for the flow of data, the US, the European Union (EU), and China are about to form quite different regulatory regimes, and thus some people claim that it would be inevitable to build up a firewall between different regimes. RCEP may work as a forum, together with other fora such as Asia-Pacific Economic Cooperation (APEC) and WTO, for specifying discordances, promoting regulatory harmonization, and nurturing mutual trust.

Third, government procurement is incorporated as Chapter 16, which is unconventional as FTAs in East Asia. However, the contents are limited to transparency, cooperation, and reviews. Together with the market-conforming discipline on SOEs, how to reconcile different economic systems across countries is going to be a continuing challenge for East Asia.

In summary, the extensive coverage of rulemaking by RCEP is a meaningful step toward a rule-based trading regime in East Asia though further deepening and effective implementation of policy disciplines must be pursued in the follow-up.

4. Reducing policy risks and forming a pro-trade coalition

RCEP covers the whole geographical extension of IPNs or the second unbundling in East Asia, and therefore it is meaningful that all countries in the region including middle powers and China declare a strong support on the rule-based trading regime by RCEP. The rule-based trading regime is the essential institutional infrastructure for Factory Asia.

It was a pity that India walked away from the RCEP negotiation. India must come back to RCEP in order to utilize the mechanics of IPNs and connect itself with East Asia. The reentry of India to RCEP will enhance the room for extending and deepening IPNs, which will give more robustness and resilience in Factory Asia.[6] It will also strengthen our pro-trade middle power coalition.

From the viewpoint of middle powers, it is great to have China in RCEP. RCEP may work as a good communication channel for middle powers with China. Chapter 18 of RCEP requests members to establish annual Ministerial Meeting, annual Joint Committee consisting of senior officials, four Committees (on goods, services and investment, sustainable growth, and the business environment), and the Secretariat. This format is a replication of ASEAN's practices for their progressive economic integration and suits dynamic and evolving agreements like RCEP. In addition to conducting necessary monitoring and follow-ups of commitments, these institutional setting allows members to discuss various issues on trade and economic integration, which may substantially reduce policy risks.[7]

5. Way forward

The immediate task for RCEP is to make it enter into force. After its ratification, acceptance, or approval, members are supposed to submit the 'instrument' to the Depositary of the agreement, which is the Secretary-General of ASEAN. The agreement will be in effect 60 days after the date on which at least six ASEAN Member States and three non-ASEAN members have deposited their instruments (Chapter 20). Singapore deposited the instrument on 9 April 2021, so did China on 15 April 2021. Thailand endorsed the agreement and will deposit the instrument after setting necessary domestic laws. Japan is now discussing the bill in the Upper House and is expected to complete ratification this month (April 2021). We will see how quickly RCEP can be effective.

Once RCEP is entry into force, we must develop it as an evolving agreement. Mega-FTAs are complementing and competing with each other in setting up the worldwide standard of liberalization and rulemaking. RCEP has an advantage in covering the whole Factory Asia with sophisticated IPNs or the second unbundling. RCEP also includes countries at widely different development stages, which is potentially advantageous in disseminating the idea of economic integration for economic development. CPTPP has a less attractive member list but sets a high standard of liberalization and rulemaking in East Asia. RCEP must catch up with CPTPP in terms of the contents of liberalization and rulemaking without losing momentum.

In addition to the conventional trade liberalization and rulemaking, new elements must be incorporated for the coming digital economy. Digital economy is generating a new type of international division of labor, i.e. person-by-person division of labor or the third unbundling (Baldwin 2016). RCEP's e-commerce chapter is just a starting point. Countries in Asia-Pacific start working on the designing of policy discipline on the flow of data in newly concluded agreements beyond CPTPP (effective in December 2018), which include Japan–US Digital Trade Agreement (effective in January 2020), Agreement between the US, Mexico, and Canada (USMCA)(effective in July 2020), Digital Economy Partnership Agreement (DEPA; with Chile, New Zealand, and Singapore)(effective in December 2020), Australia–Singapore Digital Economy Agreement (effective in December 2020), and Japan–United Kingdom Economic Partnership Agreement (effective in January 2021). Together with further liberalization in digital-related services and investment, RCEP must keep up with the digital economy.

Furthermore, RCEP is expected to work as a forum that reduces policy risks and forms a pro-trade middle power coalition in East Asia. Middle powers cannot directly control the tension between superpowers and are afraid of being forced to choose just one of them. National security is certainly an issue, but middle powers would like to keep good economic relationship with both superpowers. Isolation should not be a smart choice for superpowers, either. I hope that RCEP can be a constructive and evolving forum for all participating countries in the region.

Notes

1. In this paper, a mega-FTA is loosely defined as a free trade agreement that consists of multiple (more than two) countries such as Comprehensive and Progressive Agreement for

Trans-Pacific Partnership (CPTPP or TPP11) and Regional Comprehensive Economic Partnership Agreement (RCEP).

2. See, for example, Kumagai and Hayakawa (2021) that take care of RCEP's tariff removal commitments on the top of existing ASEAN+1 FTAs.
3. Ando, Yamanouchi, and Kimura (forthcoming) discuss the potential for India in details.
4. See Fukunaga and Isono (2013) for tariff removal ratios and ROOs in ASEAN+1 FTAs.
5. In March 2021, the Government of Japan publicized the simulation results of economic effects of RCEP on the Japanese economy based on the GTAP model with recursive dynamics (https://www.mofa.go.jp/mofaj/gaiko/fta/j-eacepia/index.html). Policy changes in the simulation are tariff removals and the reduction of transaction costs due to logistics improvements. In addition to the conventional economic effects, the enhancement of total factor productivity due to the rise of trade openness, employment creation due to the increase in real wages, and the increase in capital stock due to investment are incorporated. The cumulative increase in real GDP on the base-year real GDP in Japan by RCEP is estimated to be 2.7%. Based on the similar simulations by the Government of Japan in the past, real GDP increases by other FTAs were estimated as follows: 0.99% by Japan-EU Economic Partnership Agreement, 1.49% by CPTPP (TPP11), 2.59% by the original TPP (TPP12), and 0.8% by Japan-US Trade Agreement.
6. Robustness means that supply chains are less likely to be interrupted. On the other hand, resilience indicates that supply chains are prone to be resumed even if once interrupted. See Miroudot (2020).
7. Pedrosa and Findlay (2020) also emphasize the importance of the institutional provisions in RCEP.

Disclosure statement

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